

4.1 Response to Previous Public Questions Taken on Notice

Question taken on notice at the Special Council Meeting held on 10 June 2026.

Andrew Ball

Question 2

Later on in the briefing notes, it states that if a different accounting method was used in private practice, that the medical centre would operate at a far less of a loss or indeed a small profit, (I'm just a simple man), could you please explain what pixie dust would need to be used to turn last year's loss into a potential profit?

Shire Response 10 June 2026:

The *Local Government Act 1995* accounting standards are completely different to the private practice and there are items that Council has to account for in the accounting terms have that private practice does not have to.

Point of clarification: what would those practices be that private practice don't need to account for?

Shire Response 10 June 2026:

The Chief Executive Officer would take this question on notice.

Shire Response 25 June 2026:

The Local Government are required to allocate overhead costs across all the business units of the Shires' operations, as such these costs would not apply in private practice. Similarly, staff housing and house maintenance expenses would possibly not apply in private practice as these are part of packages the Shire has offered the Doctors and may not be continued in private practice. Adjustment for the treatment of depreciation would also be applicable, as the Shire will maintain ownership of the buildings and property.

Disclaimer - that this information is not to be relied upon and is given as general information only.

4.2 Public Question Time

Carina Wilson

Dear Councillors, and CEO,

The following questions are submitted for Public Question Time at the Ordinary Council Meeting on 25 June 2026. They concern the notices issued by CMCA requiring long-term residents of the Flax Mill Caravan Park to vacate by 19 June 2026 (a notice as served is at Attachment A). Those notices enforce the CMCA Guest Stay Policy (Ref: CMCA-GSP-FMB-001), adopted at the Ordinary Council Meeting of 28 May 2026 under agenda Item 10.4.2. In the questions below, "the policy" means that document and "the report" means the officer report for Item 10.4.2 (extract at Attachment B). Because that deadline falls before the meeting, I ask Council to suspend the notices now, and I request written responses by 5pm Thursday 18 June 2026.

Question 1

Any resident who has lived at the park for more than three months is a long-stay tenant under the Residential Parks (Long-stay Tenants) Act 2006 — not the Residential Tenancies Act 1987, the only Act the Guest Stay Policy cites. A long-stay agreement can be terminated only under that Act (s 32Q), the minimum notice for a change-of-use termination is 60 days (or 180 days for residents who own their own home or van) under s 41D, and only the State Administrative Tribunal can order a resident out.

QUESTION: What legal review was undertaken of the Guest Stay Policy and the vacation notices before they were issued, given they cite an Act that does not apply to these residents and impose a notice period the Residential Parks Act does not permit?

Shire Response:

Council's decision was based on the operational purpose of the Flax Mill Caravan Park as a short-term visitor accommodation facility. The Council report expressly states that:

- The primary purpose of the Caravan Park is to provide short-term accommodation for tourists and travellers.*
- The Caravan Park is not intended or approved for permanent residential occupation.*
- The policy was introduced to formalise stay limits and ensure the park continues to operate as a visitor accommodation facility.*

Council was therefore considering management of a tourism facility rather than recognising the park as a long-term residential park

Question 2

The report justifies the policy by reference to overdue payments, site presentation and behaviour. The Act provides an individual remedy for each — a default notice for unpaid rent (s 39), a notice to remedy site standards (ss 32L and 64), and a breach notice for park-rule or behaviour

issues (s 40) — each giving the resident a chance to fix the problem and leaving termination to the Tribunal. The policy itself concedes this at clause 7. A blanket 21-day vacation identifies no breach, offers no chance to remedy, and bypasses the Tribunal.

QUESTION: Has any affected resident been given an individual notice identifying a specific breach and an opportunity to remedy it? If not, on what lawful ground is a resident who is paid up and compliant being required to vacate?

Shire Response:

The policy was not supported as a disciplinary mechanism or a breach enforcement process. Rather, it was supported to assist CMCA to establish consistent occupancy limits for all guests and to return the park to its intended tourism and visitor accommodation purpose. The report identifies broader operational concerns including:

- *long-term occupancy pressures;*
- *reduced site availability for tourists;*
- *site presentation concerns;*
- *management difficulties; and*
- *pressure on volunteer custodians.*

The 21-day notice was therefore part of implementing a new occupancy policy across the park rather than pursuing individual compliance action against specific residents.

Question 3

The Shire owns the park and holds the licence; CMCA is its contracted manager. A local government may delegate its statutory powers only to its CEO and employees (Local Government Act 1995, ss 5.42 and 5.44), not to a contractor, and the Shire's Delegation of Authority Register 2026 records no power to terminate a tenancy under either the Caravan Parks and Camping Grounds Act 1995 or the Residential Parks Act.

QUESTION: By what instrument — Council resolution, delegation, or the management agreement — did CMCA acquire authority to issue these notices and to author a policy governing the termination of long-stay tenancies at a Shire-owned park?

Shire Response:

The facility is managed and operated by Campervan & Motorhome Club of Australia Limited (CMCA).

Council formally resolved to:

"Support the implementation of the CMCA Parks Guest Stay Policy" and the associated Essential Worker process.

Accordingly, Council supported the policy framework and CMCA was acting as the contracted manager of the facility in implementing their policy supported by Council.

Question 4

Given the matters above, the question of legal advice is central.

QUESTION: Did the Shire obtain independent legal advice on the policy and the notices before they were issued, and if so will Council release it?

Shire Response:

Council is generally not obliged to disclose privileged legal advice. If legal advice was obtained, it would be protected by legal professional privilege.

Question 5

The Ordinary Council Meeting of 28 May 2026 supported the implementation of (Item 10.4.2; Decision CM 26/05/117). That policy cites an inapplicable Act, gives 21 days' notice where the Act requires 60 or 180, and applies as a blanket eviction with no individual assessment of any resident's tenancy.

QUESTION: Were members advised, before voting, that the Residential Tenancies Act 1987 does not govern these residents; that the Residential Parks Act 2006 does; that the minimum notice is 60 or 180 days rather than 21; and that CMCA's authority to issue the notices was unconfirmed?

Shire Response:

The report presented to Council clearly disclosed:

- *the purpose of the policy;*
- *the proposed 3-month stay limit;*
- *the proposed 21-day transition period;*
- *the Essential Worker exemption process;*
- *the operational reasons for the policy; and*
- *reference to the Residential Parks (Long-stay Tenants) Act 2006.*

Council's role was to determine whether the policy should be supported based on the information presented in the report.

Question 6

The report states the Shire and CMCA are awaiting the statutory review of the Residential Parks Act. That review does not suspend the Act. The Act is in force, and its 2022 reforms removed without-grounds terminations for

residents who own their own home or van — the very kind of termination these notices attempt.

QUESTION: On what basis did the Shire treat an ongoing review as a reason to act inconsistently with the Act currently in force, and to impose a vacation the Act does not permit?

Shire Response:

The report does not state that the review justified disregarding existing legislation. Rather, it notes that a statutory review was underway while separately identifying operational challenges that prompted consideration of stay limits.

The policy decision was justified in the report on operational, tourism and accommodation management grounds rather than because of the legislative review itself.

Question 7

Section 4 of the policy requires residents to apply to CMCA for an "Essential Worker" extension in order to remain. Security of tenure for a long-stay tenant is a statutory right, not a permission an operator may grant or withhold, and the Act prohibits contracting out of its protections (s 9).

QUESTION: On what legal basis does CMCA require residents to apply for permission to exercise a statutory right, and did the Shire obtain advice that this mechanism is consistent with the Act?

Shire Response:

The Essential Worker process was intended as an exemption mechanism rather than a replacement for statutory rights. Council specifically supported:

"the CMCA Parks Essential Worker Extended Stay Application process" and authorised the CEO and CMCA Manager to assess applications.

The report states that the purpose was to balance:

- *the operational intent of the caravan park;*
- *tourism objectives; and*
- *accommodation needs of essential workers.*

Question 8

The report states permanent residency is not permitted and that the policy is required for compliance with the park's purpose. Long-stay occupancy is a recognised and lawful component of a caravan park under Department

guidance and WA Planning Commission Planning Bulletin 49/2014; changing the permitted use of land requires a planning scheme amendment with WAPC and Ministerial approval, not a management notice.

QUESTION: Does the Shire accept that changing the permitted use of Lot 336 requires a formal scheme amendment with WAPC approval and public advertising, and if so on what basis does the policy purport to change that use by notice?

Shire Response:

The Shire does not accept that the implementation of the CMCA Guest Stay Policy changes the approved land use of Lot 336.

The land is zoned "Special Use" under the applicable Local Planning Scheme. The permitted uses for the site include:

- *Caravan Park;*
- *Camping Ground;*
- *Holiday Accommodation; and*
- *Recreation – Private.*

The CMCA Guest Stay Policy does not seek to amend the Local Planning Scheme, change the zoning of the land, or alter the approved use of the site. The policy was developed by CMCA, as the Shire's contracted management agent, to assist in managing the Flax Mill Caravan Park in accordance with its intended function as a caravan park and visitor accommodation facility.

The policy relates to the operational management of the caravan park, including occupancy arrangements and length of stay, and was introduced in response to operational concerns identified by CMCA regarding increasing long-term occupancy, site availability, visitor access, park presentation and management pressures.

As no change to the planning scheme, zoning or approved land use is proposed, the Shire has not commenced, nor does it consider necessary, a scheme amendment process in relation to the Guest Stay Policy.

Question 9

The March 2026 Presidential Communications record a meeting on 11 March 2026 — eleven weeks before the notices — with Wagyl Kaip Southern Noongar Aboriginal Corporation regarding a "Flax Mill Caravan Park Master Plan," which has not been publicly released or disclosed to residents.

QUESTION: When was the Master Plan commissioned, by whom and at what cost; has it been considered in closed session and on what date; and why has it not been disclosed to the community?

Shire Response:

Council requested the preparation of a preliminary Master Plan for the Flax Mill Caravan Park as part of its ongoing strategic planning for the facility and to assist in identifying future improvement opportunities and potential grant funding applications.

As part of the early planning process, consultation is required to be undertaken with the Wagyl Kaip Southern Noongar Aboriginal Corporation in recognition of its role as the relevant Aboriginal representative body and to ensure any future concepts appropriately consider Aboriginal heritage and cultural matters.

The Master Plan remains a preliminary planning document and has not been presented for endorsement by Council. Once the document has been endorsed by Council community consultation will be undertaken.

Question 10

The April 2026 OCM (Item 10.5.5) recorded a \$70,000 revenue shortfall. The park's long-term residents represent reliable, year-round income, most valuable in winter when tourist occupancy is lowest.

QUESTION: Has the Shire modelled the net financial impact of removing this income, and what justifies it against the recorded shortfall?

Shire Response:

The implementation of the CMCA Guest Stay Policy was not driven by revenue considerations and no specific financial modelling was undertaken regarding individual long-term occupants.

The policy was proposed by CMCA as the park's management agent to address operational issues associated with extended occupancy and to ensure the facility continued to operate in accordance with its intended purpose as a caravan park and visitor accommodation facility.

Council's consideration of the policy was based on a range of factors identified in the report, including maintaining site availability for visitors, supporting tourism outcomes, addressing operational and compliance risks, improving management consistency and preserving the long-term sustainability of the facility.

The policy does not alter the approved use of the caravan park and was not supported as a measure to increase or decrease revenue. Council

acknowledges that occupancy patterns may change over time; however, the primary consideration was the effective management of the caravan park in accordance with its intended operational purpose.

I also request that the Shire:

- (a) suspend or withdraw the 19 June 2026 notices pending legal review;
- (b) confirm to the affected residents, in writing, that no action will be taken while these questions are being addressed;
- (c) obtain and provide to residents formal legal advice on the Residential Parks (Long-stay Tenants) Act 2006 as it applies to their situation; and
- (d) make the Flax Mill Caravan Park Master Plan publicly available.

5. Declarations of Interest

5.1 Financial and / or Proximity Interest

5.2 Disclosures of Impartiality Interest that may cause Conflict

6. Previous Council Meeting Minutes

6.1 Ordinary Council Meeting Minutes – 28 May 2026

Moved: Seconded:

Officer Recommendation CM 26/06/...

That the minutes of the Ordinary Council Meeting held on 28 May 2026 be confirmed as being a true and accurate record.

.....
For:
Against:

6.2 Special Council Meeting Minutes – 10 June 2026

Moved: Seconded:

Officer Recommendation CM 26/06/...

That the minutes of the Special Council Meeting held on 10 June 2026 be confirmed as being a true and accurate record.

.....
For:
Against: